

1.

| CASE #      | CASE NAME                      | HEARING NAME               |
|-------------|--------------------------------|----------------------------|
| CVRI2104849 | COUNTY OF RIVERSIDE<br>vs LIMA | MOTION TO APPOINT RECEIVER |

**Tentative Ruling:**

The Court denies the motion to appoint receiver as there is no indication that the property is still in non-compliance of the judgment.

See #2 below for reasoning.

2.

| CASE #      | CASE NAME                      | HEARING NAME                                                                                                                      |
|-------------|--------------------------------|-----------------------------------------------------------------------------------------------------------------------------------|
| CVRI2104849 | COUNTY OF RIVERSIDE<br>vs LIMA | MOTION FOR ENFORCEMENT OF<br>STIPULATED JUDGMENT AND<br>FOR COSTS, ATTORNEYS' FEES,<br>AND CIVIL PENALTIES COUNTY<br>OF RIVERSIDE |

**Tentative Ruling:**

**Summary of Ruling:**

The Court grants the motion to enforce judgment.

The Court denies the motion to appoint receiver as there is no indication that the property is still in non-compliance of the judgment.

**Factual / Procedural Context:**

On October 21, 2021, Plaintiff County of Riverside filed this action for nuisance per se arising out of the unlawful cultivation of cannabis in violation of Riverside County Ordinance No. 348. Defendant Sonia Magali Lima owns real property in Perris, which is in the unincorporated area of Riverside County, and located in the Rural Residential area. Ordinance no. 348 prohibits commercial cannabis activity without a conditional use permit (CUP) and a state cannabis license. Defendant does not have either a CUP or a state license and is engaging in cannabis cultivation.

On August 16 2022, the parties entered into a "Stipulation for Settlement and Permanent Injunction; Judgment."

County moves to enforce the judgment under Code of Civil Procedure section 128 as Code Enforcement Officer Michael Diaz has discovered 150 cannabis plants on the property on May 7, 2026, in violation of the permanent injunction. County asserts Defendant violated the judgment which entitles it to recover civil penalties (\$57,000), code enforcement costs (\$2,876.17), and attorney's fees (\$9,701). It argues that a violation of County ordinance nos. 348 and 348.4898, which prohibit commercial cannabis activity subject to two exceptions: (1) personal cannabis cultivation of 6 plants, or (2) maximum of 24 plants for qualified patients and primary caregivers. The exceptions do not apply since